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U.S. Department of State Diplomacy in Action

Yemen

Bureau of Democracy, Human Rights, and Labor

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Yemen, with a population of more than 21 million, is a republic whose law provides that the president be elected by popular vote from among at least two candidates endorsed by parliament. In September 2006 citizens re-elected President Ali Abdullah Saleh to another seven-year term in a generally open and competitive election, characterized by multiple problems with the voting process and the use of state resources on behalf of the ruling party. Saleh has led the country since 1978. The president appoints the prime minister, who is the head of government. The prime minister, in consultation with the president, selects the Cabinet, or Council of Ministers. Although there is a multiparty system, the General People's Congress Party (GPC) dominates the government. While civilian authorities generally maintained effective control of the security forces, there were a few instances in which elements of the security forces acted independently of government authority.

During a January-to-June third round of conflict which began in 2004, the government used heavy force in an attempt to suppress the al-Houthi rebels of Saada Governorate. Although there were no reliable estimates of numbers of rebels and civilians killed at year's end, an estimated 700 to 1,000 government troops were killed and more than 5,000 were wounded.

Significant human rights problems existed. There were limitations on citizens' ability to change their government due to corruption, fraudulent voter registration, and administrative weakness. There were reports that government forces committed arbitrary and unlawful killings, and torture and poor conditions existed in many prisons. Prolonged pretrial detention and judicial weakness and serious corruption were also problems. During the year, arbitrary arrest and detention increased, particularly of individuals with suspected links to the al-Houthi movement, who were forcibly removed from Saada and imprisoned in neighboring governorates. Restrictions on freedoms of speech, press, and peaceful assembly increased significantly. Pervasive discrimination against women also occurred, as well as child labor and child trafficking.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Arbitrary or Unlawful Deprivation of Life

There were reports that the government committed arbitrary or unlawful killings during the year. There were no known politically motivated killings by the government or its agents; however, security forces reportedly killed or injured suspects during apprehensions and public demonstrations, actions that appear to have been politically motivated.

On February 22, Mohammed Mohammed Ahmad al-Qadi was found dead in the Bilad al-Taam police station in the Raima Governorate. According to a local human rights organization, al-Qadi was suffering from heart problems and authorities allegedly refused to give him medical attention. Authorities arrested Al-Qadi on February 21 for his alleged failure to pay zakaat (religious charity tax) to the government. According to the Ministry of Interior (MOI), al-Qadi was given proper medical care while in custody, but died from a heart attack. Al-Qadi's medical records had yet to be released to his family at year's end.

On July 6, Mohammed al-Shoaibi was found dead in an illegal detention center belonging to a government institution in Sana'a. According to a local human rights organization, al-Shoaibi was arrested the day before for allegedly selling merchandise illegally on the streets, and was killed while resisting arrest. No investigation took place by year's end.

In an August 8 clash, government forces raided the home of and killed four individuals allegedly involved in the July 2 Ma'rib suicide attack. Human rights groups complained that the suspects were neither charged nor tried. The authorities did not begin an investigation by year's end.

In December 2006, acting on allegations of terrorism, government security forces raided his home and arrested a supposed member of the al-Qa'ida terrorist organization, killing his brother in the process. His father and another brother were imprisoned for a week after the incident. The family reported the killing to a human rights organization but did not further pursue the case. The authorities made a deal with the family; no investigation took place by year's end.

Unlike the previous year, there were killings by security forces during demonstrations. During protests between August and September in the southern governorates, security forces killed at least seven persons and arrested and injured hundreds.

On September 30, 25-year-old detainee Hashem Abdullah Yahya Hajar died in the Central Prison in Sana'a, according to a local human rights organization. On June 7, Hajar was arrested on charges of having links to the al-Houthi rebels during the Saada conflict. His family claimed he was not provided adequate health care despite serious health problems. The MOI denied these allegations, claiming that he was given adequate medical attention and taken to Sanaa's al-Thawra Hospital, where he died. There was an ongoing investigation into his death at year's end.

There were no developments in the following cases of 2006 killings: Abed al-Osaily, a journalist from the newspaper *Al-Nahar*; in al-Jawf, Lahij, and Dhamar provinces during the time of the presidential and local council elections; and police officer Mohammed Said Abdu while in custody.

There were reports of killings due to the excessive use of force in the internal conflict with the al-Houthi rebels of the Saada Governorate (see section 1.g.).

Tribal violence resulted in a number of killings and other abuses, and the government's ability to control tribal elements remained limited. In several cases long-standing tribal disputes were resolved through government-supported mediation by nongovernmental actors.

Other incidents of fatal shootings and violence continued throughout the year. In most cases, it was impossible to determine the perpetrator or the motive, and there were no claims of responsibility. Some may have had criminal, religious or political motives, while others appeared to involve land disputes or tribal revenge.

On May 1, according to the press, al-Qa'ida claimed responsibility for the March 29 killing of Colonel Ali Qasilah, director of criminal investigation in Ma'rib Governorate.

On July 2, eight Spanish tourists and two citizens were killed and eight others injured in an attack near Belqis Temple in Ma'rib. Reports indicated that al-Qa'ida was responsible for the attack; investigations were ongoing at year's end.

The country was contaminated with mines and unexploded ordnance as a result of several conflicts, including the 1962-1975 war in the North between republicans and royalists, the 1963-1967 war of independence in the South, the 1970-1983 war against left-wing guerrillas, and the 1994 separatist war. The majority of mines were laid in border areas between North and South Yemen and in the southern governorates.

In April there were two reports of the use of antipersonnel mines, including antitank and improvised mines, during the conflict between government troops and rebel forces led by Abdul-Malik al-Houthi in the northern province of Saada. At least 60 people, including military personnel, were reportedly admitted to hospitals with injuries resulting from mine explosions in Saada.

According to the Yemen Executive Mine Action Center (YEMAC), at year's end, there were at least 18 mine and explosive remnants of war (ERW) casualties, including 12 killed and 6 injured. In 2006 there were at least 19 mine and ERW casualties, including seven killed and 12 injured.

In 1998, the government ratified the Anti-Personnel Mine-Ban Treaty and began the National Mine Action Program. At year's end, according to YEMAC, approximately 215 square kilometers of land remained to be demined.

b. Disappearance

There were no reports of politically motivated disappearances; however, during the year there were some reports of tribal kidnappings, traditionally committed to attract government attention to particular grievances.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The law prohibits such practices; however, according to human rights nongovernmental organizations (NGOs) and former detainees, authorities tortured and abused persons in detention. During the year, the Political Security Office (PSO), a security agency reporting to the president, denied that torture occurred at their facilities and noted that PSO officers when entering service must sign an internal PSO document that certifies that they recognize that torture is illegal according to the laws and constitution of the country and that those who torture prisoners will be punished according to the law.

MOI officers reportedly used force during interrogations, especially against those arrested for violent crimes. Although penal law permits amputations and physical punishment such as flogging for some crimes, which the government maintains is in accordance with Shari'a (Islamic law), there were no reports of amputations or floggings during the year.

Other government sources acknowledged that torture occurred; however, they claimed that torture was not official policy.

During the year, the Ministry of Human Rights (MHR) reported that it received one complaint concerning the alleged torture of Shaif al-Haimi at the hands of the National Security Bureau (NSB) and the Criminal Investigative Department (CID).

Throughout the year, the MHR followed up on cases of torture that were either reported in the press or were forwarded to the ministry from NGOs.

On January 24, NSB officers allegedly broke into the home of Shaif al-Haimi and forcibly arrested him on charges of theft and of disguising himself as an NSB officer. Al-Haimi alleged that authorities tortured him during his one-month prison detention, paralyzing his right hand. Human rights groups accused the authorities of fabricating the second charge to legally involve the NSB, because the NSB has no legal authority over theft. The NGO National Organization for Defending Rights and Freedoms (HOOD) handled al-Haimi's case until his March release. Al-Haimi conducted a press conference on April 23, exposing physical evidence of abuse. Authorities rearrested al-Haimi a few days after the press conference. The NSB maintained their charge that al-Haimi committed crimes while disguising himself as an NSB official. According to NSB, al-Haimi physically abused himself after a partner in crime confessed to their guilt. He was released in October from NSB custody for health reasons and at year's end was awaiting trial in a Ministry of Justice (MOJ) specialized criminal court for the charges.

Although the PSO denied this claim, human rights organizations reported during the year that torture remained a problem in PSO prisons, which were not systematically monitored by other government agencies. Credible reports indicated the primary forms of abuse in PSO prisons included sleep deprivation and solitary confinement.

There were reports that the MOI's CID routinely used torture to obtain confessions. Defense attorneys and some NGOs claimed that most confessions introduced as evidence against defendants in criminal courts were obtained through torture. During the year, the MOI denied that it used torture as a policy. MOI, in association with the MHR, conducted awareness programs and workshops against torture for their officers during the year. Local NGOs asserted that in several instances in which prison abuse cases were referred to the Attorney General's office for prosecution, the complainants were threatened and decided not to follow through on their cases. Government sources denied this allegation.

In a June 6 MHR prison visit report to the cabinet, the case of Mohammed Saleh al-Amari was reported. Al-Amari was detained by the security department for seven months at the Radaa Central Prison in the al-Bayda Governorate for allegedly refraining to disclose information on a murder case. He reported that he was tortured during his detention.

Security forces reportedly beat detainees and prisoners during the year. For example, according to a leading local NGO, Azim Hasan Abdullah al-Wosabi was beaten while arrested for stealing on May 14. He was transferred to a rehabilitation center on May 15 with wounds still visible from the beating. The accused officer who beat al-Wosabi, Jamal Abdul Naser al-Maghreb, was ordered to court. His case was ongoing at year's end. On December 3, al-Wosabi was released from the rehabilitation center and his case was ongoing at year's end.

On May 23, 25 detainees in a CID prison ended a hunger strike that lasted for a week, but the 25 strikers said they will sue the CID for material losses and psychological complications they suffered in prison due to mistreatment, according to the Web site NewsYemen. The detainees were arrested in June 2006 and detained without trial or charges against them. Four were released, while the others remained under judicial custody at year's end.

Prison and Detention Center Conditions

Local and international observers reported that prison conditions remained poor and did not meet internationally recognized standards. The MHR and a number of NGOs were granted limited access to MOI prisons. The government severely limited access to PSO prisons by independent human rights observers. PSO denied this claim during the year.

Many prisons, particularly in rural areas, were overcrowded and had poor sanitary conditions and inadequate food and health care. In some cases prison authorities extracted bribes from prisoners to obtain privileges or refused to release prisoners who completed their sentences until family members paid them.

Although women were held separately from men, and conditions were equally poor in women's prisons, men and women's prison conditions differed in some respects. By custom, young children and babies born in prison were likely to remain with their mothers. Local tradition requires male relatives of female prisoners to arrange their release; however, female prisoners regularly were held in jail past the expiration of their sentences because male relatives refused to authorize their release due to the shame associated with their behavior.

In some rural and women's prisons, children were held with adults, and pretrial detainees were held with convicted prisoners. Security and political detainees generally were held in separate facilities operated by the PSO.

Unauthorized "private" prisons in rural areas, often controlled by tribes, continued to operate. Tribal leaders misused the prison system by placing "problem" tribesmen in private jails, either to punish them for noncriminal actions or to protect them from retaliation. At times such prisons were simply rooms in a tribal sheikh's house. Persons were detained in such prisons often for strictly personal or tribal reasons without trial or sentencing. Although senior government officials did not sanction these prisons, there were credible reports of the existence of private prisons in government installations.

Persons with mental illness who had committed crimes were imprisoned without adequate medical care. The MOI denied this and asserted that nurses and doctors watch over the mentally ill detainees. In some instances authorities detained without charge persons with mental illness and placed them in prisons with criminals. The MOI reported during the year that, at times, family members brought their mentally ill relative to MOI-run prisons, asking officers to imprison these individuals. At year's end MOI-run prisons in Sana'a, Aden, and Taiz operated in conjunction with the NGO Red Crescent semi-autonomous units for prisoners with mental illnesses; conditions in these units were reportedly deficient. In 2005, MOI requested from the cabinet that the Ministry of Health (MOH) establish centers for the transfer of mentally ill detainees. At year's end, neither the cabinet nor the MOH had acted on this request.

Limited access was granted to family members of PSO-held detainees, but requests for access by parliamentarians and NGOs to investigate human rights violation claims were routinely denied. PSO argued during the year, however, that visitors failed to comply with proper notification procedures, necessitating refusal of access.

Individuals working for NGOs were allowed to meet with MOI prisoners as private visitors. Representatives of the MHR met with domestic NGO monitors and responded to inquiries, particularly in matters relating to prisoners. NGOs had no access to CID prisons.

The MHR stated that it visited prisons approximately twice a month during the year and recommended improvements to the cabinet on prison conditions. The MHR July report on the visit to the Central Prison in Sana'a reported that children were held with adults, and at times were left unsupervised while in the presence of adult prisoners.

Since 2004 the International Committee of the Red Cross (ICRC) has suspended visits to PSO prisons, citing a lack of agreement to its universally applied procedures.

d. Arbitrary Arrest or Detention

The law prohibits arbitrary arrest and detention; however, the government generally did not observe these prohibitions. Enforcement of the law was irregular and in some cases nonexistent, particularly in cases involving suspected security offenses.

Role of the Police and Security Apparatus

The primary state security and intelligence gathering apparatus, PSO and NSB, report directly to the president. Many of NSB's duties are not clearly delineated and appear to overlap with those of PSO. The police CID reports to the MOI and conducts most criminal investigations and arrests. The Central Security Organization (CSO), also a part of the MOI, maintains a paramilitary force. Corruption was a serious problem. There were no public government investigations of police corruption during the year. Some police stations reportedly maintained an "internal affairs" section to investigate security force abuses, and any citizen had the right to file a complaint with the prosecutor's office. During the year, enforcement of this right was irregular and there were no reported effective investigations. MOI also had a complaints fax line for claims of abuse which it reportedly investigated. It was unknown at year's end how many fax complaints MOI received and investigated.

Arrest and Detention

The law provides that individuals cannot be arrested unless apprehended in a criminal act or served with a summons. Detainees must be arraigned within 24 hours of arrest or be released. The judge or prosecuting attorney must inform the accused of the basis for the arrest and decide whether detention is required. The law stipulates that a detainee may not be held longer than seven days without a court order. Despite the law, arbitrary arrest and prolonged detention without charge or, if charged, without a public preliminary judicial hearing within a reasonable time, were common practices. For example, following the January start of the third round of fighting between al-Houthi rebels and government forces, approximately 100 individuals from Saada were reportedly arbitrarily arrested and detained for suspected links with the al-Houthi movement.

The law prohibits incommunicado detention and provides detainees with the right to inform their families of their arrests and to decline to answer questions without an attorney present; however, these rights were not always respected. The law states that the government must provide attorneys for indigent detainees, but in practice it often did not do so. Almost all rural cases were reportedly settled out of court with tribal mediators. There are provisions for bail; however, some authorities abided by these provisions only if bribed.

Citizens regularly claimed that security officials did not observe due process when arresting and detaining suspects and demonstrators. Members of the security forces continued to arrest or simply detain persons for varying periods of time without charge, notification to their families, or hearings. Detainees were often unaware of the investigating agency, and the agencies frequently complicated the situation by unofficially transferring custodial authority of individuals to other agencies. Security forces routinely detained relatives of fugitives as hostages while the suspect was being sought. Authorities claimed during the year that they only detained relatives when they obstructed justice. Human rights organizations rejected this claim.

The government failed to ensure that detainees and prisoners were incarcerated only in authorized detention facilities. The MOI and the PSO operated extrajudicial detention facilities; both MOI and PSO denied this claim. Unauthorized private prisons also existed. For example, on November 19, a leading local NGO visited an unauthorized private prison within the Yemen Economic Corporation, formally under the Ministry of Defense, and confirmed that five persons were being detained in a small room adjacent to the main building. The detainees were Yasser Abdullah al-Idrisi, detained since April 14; Ahmed al-Souswah, previously detained from May 27 to July 17 and then again detained since November 12; Mohammed al-Harazi, detained since September 9; Jamil al-Raimi and Khalid al-Raimi, both detained since November 18. Jamil al-Raimi was released at the end of November, Khalid al-Raimi was released on November 21, al-Souswah was released on November 28, and al-Harazi was released on November 29. On December 3, al-Idrisi was moved to the prosecution office, where he remained detained until the end of the year.

Other unauthorized private prisons reportedly existed at the National Drug Company, the Yemen Television Corporation, and the Ministry of Interior. Local NGOs considered these prisons to be unconstitutional and called for their abolition. MOI claimed it did not operate unauthorized private prisons.

There were numerous reports that security forces arrested hundreds of individuals in relation to the Saada conflict and detained them without charge.

Members of the security forces continued to detain journalists for publishing articles deemed controversial by the government.

According to the European Union (EU) Election Observation Mission, authorities arrested approximately 100 opposition supporters and two opposition candidates during the September 2006 election campaign. All were released shortly thereafter.

During the year the government also continued to detain suspects accused of links to terrorism, often without due process. The government did not publish numbers of detainees held under suspicion of terrorist affiliations or activities. In February 2006 the MOI reported that 172 individuals were held for suspected terrorism links. During the year a leading human rights NGO estimated the number to be between 50 and 100 persons, attributing the significant decrease to amnesties and prison escapes. At year's end it was unknown how many persons the government held on suspicion of terrorist affiliation or activities. A large percentage of the total prison population consisted of pretrial detainees, some of whom had been imprisoned for years without charge.

At year's end authorities released the last detainee of the October 2006 arrests by security authorities of eight noncitizens in an alleged al-Qai'da plot to smuggle weapons into Somalia.

Throughout the year the government sponsored ideological dialogues led by Islamic scholars as part of a re-education program called "The Committee for Dialogue" aimed at convincing detainees to renounce extremist beliefs. Detainees who participated agreed to give up the armed struggle if they could not persuade official clerics of its legitimacy. If released, they

were placed under surveillance and placed in jobs or provided funds for further education.

Amnesty

According to press reports on September 20, President Saleh ordered the release of 67 prisoners detained on charges of suspected links with the al-Houthi movement.

On October 14, Saleh granted a general amnesty and released approximately 300 prisoners on the occasion of Eid al-Fitr.

e. Denial of Fair Public Trial

The constitution provides for an autonomous judiciary and independent judges; however, a weak judiciary was severely hampered by corruption and executive branch interference.

Many litigants maintained, and the government acknowledged, that a judge's social ties and occasional bribery influenced verdicts. Many judges were poorly trained, and some were closely associated with the ruling party. The judiciary was hampered further by the government's frequent reluctance to enforce judgments. Tribal members at times threatened and harassed members of the judiciary.

The judicial system is organized in a three-tiered court structure. Courts of first instance are broadly empowered to hear all civil, criminal, commercial, and family matters. A single judge may hear a case in these courts. Decisions taken in the courts of first instance may be appealed to the Courts of Appeal, of which there is one in each province and one in the capital. Each Court of Appeal includes separate divisions for criminal, military, civil, and family issues. Each division is composed of three judges. Above the Courts of Appeal is the Supreme Court.

The Supreme Court is empowered to settle jurisdictional disputes between different courts, hear cases brought against high government officials, and serve as the final court of appeal for all lower court decisions. The Supreme Court has eight separate divisions: constitutional (composed of seven judges including the chief justice), appeals' scrutiny, criminal, military, civil, family, commercial, and administrative. The Supreme Court has special panels empowered to determine the constitutionality of laws and regulations.

In addition to the regular hierarchy of courts, there are courts for military, juvenile, tax, customs, and labor matters, whose decisions may be appealed to the Courts of Appeal.

A specialized criminal court, not a military tribunal, was first established in 1999 under the MOJ to try persons charged with kidnapping, carjacking, attacking oil pipelines, and other acts considered to be a "public danger," such as banditry and sabotage. However, nonsecurity-related cases were referred to this court during the year. According to a leading local NGO, this court does not provide the defendants with the same rights provided in the regular courts. Amnesty International (AI) and local NGOs reported specialized criminal courts to be unconstitutional. Defense lawyers reportedly did not have full access to their client's charges or relevant government-held evidence and court files.

Trial Procedures

Laws are based on a mixture of Egyptian laws, Napoleonic tradition, and Shari'a. The law, social custom, and Shari'a, as interpreted in the country, discriminated against women, particularly in domestic matters. There are no jury trials. Judges, who play an active role in questioning witnesses and the accused, adjudicate criminal cases. By law, the government must provide attorneys for indigent defendants in serious criminal (felony) cases; however, in practice, provision of legal counsel did not always occur. By law, prosecutors are a part of the judiciary and independent of the government; however, prosecutors also investigate criminal cases. The police were generally weak and played a limited role in developing cases.

The security services continued to arrest, charge, and submit cases to the prosecutor's office to try persons alleged to be linked to shootings, explosions, and other acts of violence. Citizens and human rights groups alleged that the security forces and judiciary did not normally observe due process.

The accused are considered innocent until proven guilty. Defense attorneys are allowed to counsel their clients, address the court, and examine witnesses and any relevant evidence. All defendants, including women and minorities, have the right to appeal their sentences. Trials were generally public; however, all courts may conduct closed sessions "for reasons of public security or morals." Foreign litigants in commercial disputes complained of biased rulings.

In addition to regular courts, there is a system of tribal adjudication for noncriminal issues; however, in practice, tribal judges often adjudicated criminal cases. The results carried the same if not greater weight than court judgments. Persons jailed under the tribal system usually were not charged formally with a crime, but were publicly accused of their transgression.

Parliament has exclusive jurisdiction over executive branch officials and their representatives for crimes including bribery, interference, and embezzlement. No government official was investigated or tried under this law during the year.

Political Prisoners and Detainees

The number of political prisoners or detainees and conditions in which they were held was unclear. PSO reported that no political prisoners were detained in their prisons during the year. Human rights activists were unable to provide data on any such persons and access to such detainees by international humanitarian organizations was not permitted on a regular basis, prompting ICRC to suspend its visits to PSO prisons in 2004.

Civil Judicial Procedures and Remedies

The law provides for an independent and impartial judiciary in civil matters; however, there were limitations in practice. In July 2006 local NGO HOOD filed the first civil suit against the president. It was on behalf of Ahmad Ali bin Maeili, who claimed the PSO detained him without charge for six years. After the court rejected the case, HOOD appealed to the Supreme Court. There was no further information on the case by year's end.

In December 2006 Hamdan al-Derssi attempted to file a civil case in a Hudayda court against Saleh al-Fasheq, a prominent local sheikh, claiming that al-Fasheq abused and sodomized him with a stick. Al-Derssi claimed that the court rejected the case because the sheikh is politically well-connected. Al-Derssi then filed a complaint with the General Prosecutor in Sana'a. The case was being tried at the Hodeidah Governorate court at year's end.

f. Arbitrary Interference with Privacy, Family, Home or Correspondence

The law prohibits such action; however, PSO and MOI police forces routinely searched homes and private offices, monitored telephone calls, read personal mail and email, and otherwise intruded into personal matters for alleged security reasons. Activities were conducted without legally issued warrants or judicial supervision. PSO and MOI rejected these claims during the year. According to the PSO, the Attorney General must personally permit monitoring of telephone calls and reading of personal mail and email. For house inspection, PSO reported it received a warrant and a signed certification by the head of the neighborhood and two neighborhood members as witnesses to a house search.

Local NGOs and journalists reported an increase in interference due to the Saada conflict.

On July 20, five plain clothes men posing as electricians entered the home of journalist Abdelkarim al-Khaiwani. The men beat al-Khaiwani in his home and took him into custody. The men returned to his home and took al-Khaiwani's personal documents and electronics. Al-Khaiwani claimed to have proof that his mobile phone, as well as mobile phones belonging to some of his journalist colleagues, was tapped.

On July 30, 10 armed men in two military vehicles broke into the office of the newly-established *Al-Shari'e* newspaper, reportedly searching for its owners, Nayef Hassan and Nabil Subaie, who were not there at the time. The men reportedly confiscated electronics.

Throughout the year, various human rights activists and journalists reported receiving repeated threatening phone calls throughout the day and into the night. Activists and journalists charged this is a new form of intimidation by the authorities in an attempt to quiet the opposition, most specifically in regard to the Saada conflict.

The law prohibits arrests or the serving of a subpoena between sundown and dawn; however, there were reports that persons suspected of crimes were taken from their homes without warrants in the middle of the night.

No citizen may marry a foreigner without permission from the MOI, but this regulation does not carry the force of law and appeared to be enforced irregularly.

In other cases, detention of family members continued while the concerned families negotiated compensation for the alleged wrongdoing. Arbitration and mediation by families, tribesmen, and other nongovernmental interlocutors were commonly used to settle such cases.

g. Use of Excessive Force and Other Abuses in Internal Conflicts

In January a third phase of fighting began between the government and the al-Houthi rebels of Saada in the conflict that initially dated to 2004. The government repeatedly used heavy force in an attempt to suppress the rebels' uprising, which was suspended with an unstable cease-fire in June.

Approximately 100 individuals from Saada were reportedly arbitrarily arrested and detained for suspected links with the al-Houthi movement. Authorities forcibly removed approximately 45 individuals, including some minors, from Saada and imprisoned them in the neighboring governorate of Hajja. At year's end, they had been neither released nor charged. Local NGOs accused the government of illegal and inhumane treatment of these detainees. There were reportedly 50 Saada detainees in Sana'a and 22 in Dhamar.

On October 7, the *Yemen Times* reported that 14 military vehicles loaded with security personnel attacked the Badr Center for Islamic Studies in Sana'a after the head of the center, Dr. Al-Murtadha al-Mohatwari, demanded the releases of Saada detainees. Security authorities reportedly destroyed the main gate of the center.

There were no reliable estimates of numbers of rebels and civilians killed at year's end. An estimated 700 to 1,000 government troops were killed and more than 5,000 wounded. An international NGO, however, was able to confirm its assistance during the year to at least 45,000 internally displaced persons (IDPs) from the Saada conflict.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The constitution provides for freedom of speech and of the press "within the limits of the law;" however, the government did not respect these rights in practice. The 1990 Press and Publication Law criminalizes "the criticism of the person of the head of state...[that] does not necessarily apply to constructive criticism," the publication of "false information" that may spread "chaos and confusion in the country," and "false stories intended to damage Arab and friendly countries or their relations" with the country. The country's security apparatus, including the NSB and elements of the military, threatened and harassed journalists to influence press coverage. Self-censorship was practiced during the year.

The Ministry of Information influenced the media through control of printing presses, subsidies to newspapers, and ownership of the country's sole television and radio outlets. Three independent newspapers and no opposition newspapers owned their own presses. According to the Yemen Journalist Syndicate (YJS), there were approximately 9 government-controlled, 50 independent, and 30 party-affiliated newspapers. There were approximately 91 magazines, of which 46 were private, 27 were government-controlled, and 18 were party-affiliated. The government selected the items to be covered in news broadcasts and rarely permitted broadcasts critical of the government. The government televised parliamentary debates and occasionally permitted broadcasts of aggressive criticism of ministries.

Press law specifies that newspapers and magazines must apply annually to the government for licensing renewal and that they must show continuing evidence of approximately \$4,375 (700,000 riyals) in operating capital. There were reports that the authorities made the registration process bureaucratically impossible for opposition figures or organizations, such as the NGO Women Journalists Without Chains (WJWC), which attempted for months unsuccessfully to obtain a license for a newspaper. Progovernment or tribal newspapers were said to receive licenses immediately. In June and July the Ministry of Information granted more than 25 licenses for new newspapers in Hudayda, Sana'a, and Mukallah. These new licenses were allegedly granted as a result of pressure from parliamentarians, journalists, and human rights activists who demanded that new papers be allowed licenses.

On June 11, the text message news service sponsored by WJWC was suspended by the government. The head of WJWC, Tawwakul Karman, unsuccessfully appealed the decision. The government instead suspended all text message news services on June 12, eventually restoring all except those of WJWC and the Islah-affiliated Nass Mobile Service. Karman staged sit-ins throughout the summer in an attempt to overturn the ruling. At year's end, WJWC news text message services remained suspended.

On August 8, a group of journalists and human rights activists released a list of individuals and groups responsible for violating press freedom since 2005. Violations included banning the issuance of papers, preventing journalists from practicing their duties, shutting down papers, beatings, harassment and detention. Names of ministers and heads of government offices were included on the list. On November 30, during a regional civil society conference in Sana'a where the list was displayed on a banner, a member of the PSO confiscated the banner and held it for the remainder of the conference. According to the PSO, the officer involved did not act on official orders and was reprimanded for confiscating the banner.

Physical attacks against journalists increased during the year, along with government harassment, including threats against journalists and their families, brief imprisonment, and personal surveillance.

On August 27, a group of men, reportedly government officials, forcibly removed journalist Abdelkarim Al-Khaiwani from the street and put him into a car, where he was beaten. Al-Khaiwani had been released on bail on July 24 after authorities arbitrarily arrested and detained him on July 20 (see section 1.f.). Al-Khaiwani was taken to a remote location in Khawlan district, 15 kilometers from Sana'a. He was allegedly tortured and threatened that if he continued to write against his "masters," he and his wife and three children would be killed. His kidnappers stole his mobile phone and money and left him in Khawlan, after which he went to the hospital. At year's end Al-Khaiwani was free on bail awaiting trial on charges of conspiring to overthrow the government and belonging to an armed group, the "Sana'a terrorist cell."

On July 30, 10 armed men in two military vehicles broke into the office of the newly-established *al-Shari'e* newspaper, reportedly searching for its owners and editors, Nayef Hassan and Nabil Subaie, who were not there at the time. The men allegedly confiscated electronics. On July 7, the defense ministry filed a complaint against *al-Shari'e* for publishing military secrets in reference to the Saada investigation. According to the law, cases related to the media are arbitrated by the Press and Publication Prosecution Office; however, Subaie and Hassan's cases will be tried by the specialized courts for terrorist-related activity. *Al-Shari'e* is reported to be the first newspaper to be tried in a specialized criminal court. The case was ongoing at year's end.

On October 2, more than 10 men allegedly attacked journalist Sadam al-Ashmori during his coverage of demonstrations at Freedom Square in Sana'a. Al-Ashmori, who works as a freelance reporter for *Yemen Times*, suspected that the attackers were plain-clothed security officials. Police and other security officials that were present claimed that they had not seen the incident.

There were no developments in the following cases: Jamel Amer's 2005 abduction and abuse; the November 2006 attack and brief detention of al-Jazeera correspondent Ahmad al-Shalafi and his cameraman, Ali al-Baidhani; the March 2006 abduction and assault of Qaed al-Tairi, journalist for the Socialist Party weekly *Al-Thawri*; the April 2006 attack on journalist Abdulfatah al-Hakimi; the April 2006 reported death threats against Abed al-Mahthari, editor-in-chief of the independent weekly *Al-Deyar*; the 2005 stabbing of journalist Nabil Subaie; and in the 2005 armed attack on journalist Mohammed Sadiq al-Odaini.

Unlike in previous years, there were no new government cloned newspapers during the year. In 2005 in an attempt to counter dissent, elements close to the government or security apparatus cloned two newspapers, *Al-Shura* and *Al-Thawri*. The government published newspapers with similar names, fonts, and colors, but carried more progovernment editorials and stories. The *Al-Thawri* clone ceased publication in 2005 after several weeks, but the *Al-Shura* clone continued publishing at year's end.

In February 2006 journalists were tried and sentenced for writing articles critical of the president or for reporting on sensitive issues. The government temporarily imprisoned three journalists for reprinting Danish cartoons caricaturing the Prophet Mohammed and charged them, along with a fourth journalist who was not arrested, with violating a law that forbids the publication of anything that "prejudices the Islamic faith." In November 2006 a lower court convicted Kamal al-Olufi of *Al-Rai al-Am* and sentenced him to a one-year prison term, closed the paper for six months, and barred him from writing for six months. In December 2006 Mohammed al-Assadi, editor of the *Yemen Observer*, was convicted and fined approximately \$2,500 (500,000 riyals). Again in December a lower court convicted two journalists from *Al-Hurriya*, Akram Sabra and Yehya al-Abed, who received a suspended sentence, one month closure of the newspaper, and a one month writing ban. All three defendants paid their fines and were released from jail.

At times customs officials confiscated foreign publications regarded as pornographic or objectionable due to religious or political content. During the year there were some reports that authorities monitored foreign publications and banned those deemed harmful to national interests.

Authors of books were required to obtain a certification from the Ministry of Culture (MOC) for publication and also were required to submit copies to the ministry. At times publishers did not deal with an author who had not yet obtained a certification. Most books were approved, but the process was time consuming. There were reports that both the MOC and the PSO monitored and sometimes removed books from store shelves after publication. A 2005 ban continued on publishers distributing books that espoused Zaydi-Shiite Islamic doctrine or were deemed pornographic. The government denied that the media was subject to censorship by any security apparatus.

Internet Freedom

The government restricted Internet use by intermittently blocking access to some political and religious Web sites and to sites deemed immoral. During the year the government reportedly blocked a number of independent and opposition news Web sites, such as al-Shura.net and Ishtiraki.net, and the Web site for the independent weekly *al-Ayyam* newspaper.

The International Telecommunication Union estimated that less than 1 percent of the country's population used the Internet. Many could not afford—and were simply unfamiliar with—the equipment and services needed to access the Internet. The government limited the Internet content that its citizens could access by using commercially available filtering technology and by controlling its two Internet service providers, TeleYemen (operators of the service YNET) and YemenNet, through the

ministry of telecommunications and information technology. Human rights and other NGOs complained that the government restricted what journalists may write and how citizens used the Internet through a variety of means of intimidation. Limited Internet access was readily available from homes or Internet cafés.

Academic Freedom and Cultural Events

The government restricted academic freedom, claiming it was necessary due to the politicization of university campuses. Political parties frequently attempted to influence academic appointments, as well as university faculty and student elections. During the year, security officials were present on university campuses and at intellectual fora. PSO representatives had permanent offices on the campuses. Government informers monitored the activities of professors and students, especially those who were alleged affiliates of opposition parties. Authorities reviewed prospective university professors and administrators for their political acceptability before hiring them, and favoritism was commonly shown toward affiliates or supporters of the ruling GPC party.

A 2005 ban was intermittently enforced on new student associations at Sana'a University. Opposition sources contended that this regulation was not enforced against GPC-affiliated organizations.

b. Freedom of Peaceful Assembly and Association

Freedom of Assembly

The law provides for freedom of assembly; however, the government limited this right in practice. The government required a permit for demonstrations, which it issued routinely. Government informers monitored many meetings and assemblies.

The government banned and disrupted some demonstrations, allegedly to prevent them from degenerating into riots and violence.

On August 19, strong clashes occurred between security forces and students enrolling at Sana'a University, with reportedly one student injured and taken to the hospital after a security official beat him on the head with the back of his pistol. Reportedly the incident occurred in sequence with student protests against the admissions committee at the Faculty of Trading and Commerce, accusing the faculty of distorting the admissions process.

After the 1994 civil war, the northern government forced thousands of southern military and civilian officials to retire. These individuals have continued to demand reintegration compensation and other redress and were especially active during the year, with significant southern political support. On August 2, the government banned a sit-in in Aden by forcibly retired military and civilian officers. Security forces dispersed the protestors by force. One person was reportedly killed and many injured and arrested.

On September 1, thousands of individuals participated in massive protests in the southern governorates citing poor living conditions, corruption, unemployment, and a call for the reintegration of forcibly retired southern military and civilian officers. Police killed at least two in a Mukallah protest and killed three and injured 400 in Aden the same day. The police arrested hundreds of individuals. All were released by year's end.

Throughout September police continued to respond forcibly to protests in the southern part of the country. For example, on September 4, riot police responded to a protest in the Hadramaut governorate with tear gas, bullets, and water cannons. On September 11, police arrested and charged with high treason (a death penalty offense) 20 protestors in Aden and Mukallah for chanting slogans against a unified Yemen. On September 14, security forces dispersed approximately 3,000 peaceful protestors in Mukallah with fire hoses and arrested 11 individuals.

Human rights NGOs and the media reported that those detained from these demonstrations have been abused and tortured in custody. Security authorities denied a request by parliamentarians to visit a detained protest leader.

An investigation remained pending at year's end into MOI actions concerning the shooting deaths of demonstrators in 2005 riots protesting the government lifting of fuel subsidies. The violence resulted in approximately 43 deaths. Press reports asserted at least 23 civilians were killed, including a 12-year-old child. In July 2006 the government reported that at least 255 security personnel and 120 protesters were injured in similar riots. Parliament submitted an inquiry to the MOI on the shooting deaths of demonstrators. The investigation remained pending at year's end.

Freedom of Association

The law provides for freedom of association, and the government nominally respected this right in practice; however, the ruling party retained control of professional associations by influencing internal elections and subsidies. According to local observers, there were approximately 20 legally recognized NGOs independent of the ruling party operating in the country.

An association, including NGOs, must register annually, usually a routine matter, with one of four ministries: Social Affairs and Labor (MSAL), Culture, Education, or Vocational Training and Technical Education. The government cooperated in varying degrees depending on the issues with legally recognized NGOs, which by law were provided with an annual stipend. Some ministries reportedly harassed NGOs critical of the government by denying their annual registration and through subsidy. For example, the YJS reported it had not been issued its stipend during the year. The MSAL refused to register the Arab Sisters Forum for Human Rights, WJWC, and HOOD; these NGOs were often critical of the government.

All political parties must be registered in accordance with the Political Parties Law, which stipulates that each party must have at least 75 founders, verified in a court of law, and 2,500 members. On March 20, the al-Haq Party was dissolved for reportedly violating the Political Parties Law. However, civil society observers claim that the party was abolished due to its affiliation with the al-Houthi rebels and for its Zaydi appeal.

c. Freedom of Religion

The law provides for freedom of religion, and the government generally respected this right in practice; however, there were some restrictions. The constitution declares that Islam is the state religion and that Shari'a is the source of all legislation.

Government actions to counter the increase in political violence restricted some religious practice. The government took actions to counter the increase in political violence as a result of the 2004, 2005, and January uprisings by the al-Houthi rebels in the northern Saada Governorate. The government banned for the third consecutive year the celebration of Ghadeer Day, a holiday celebrated by some Shi'a, in parts of the Saada Governorate.

The government also reportedly limited the hours that mosques were permitted to be open to the public and reassigned some Imams who were thought to espouse radical Shi'a ideology or Zaydi doctrine, replacing them with Shafi'i or Salafi preachers.

Non-Muslims were free to worship according to their beliefs and to wear religiously distinctive ornaments or dress; however, Shari'a, as interpreted by the government, forbids conversion from Islam and prohibits non-Muslims from proselytizing. The government enforced this prohibition. The government required permission for the construction of all places of worship and the constitution prohibited non-Muslims from being elected to the presidency or parliament. Non-Muslim citizens may vote but may not hold elected office.

Under Islam, as interpreted by the government, the conversion of a Muslim to another religion is considered apostasy, which the government considers a crime punishable by death. There were no reports of cases in which the crime was charged or prosecuted by authorities.

Official policy does not prohibit or prescribe punishment for the possession of non-Islamic religious literature; however, in previous years there were reports of persons being harassed and temporarily detained for possession of religious materials with the intent to proselytize.

Catholic, Protestant, Ethiopian Orthodox Christian, and Jewish services were held without government interference.

Public schools provided instruction in Islam, but not in other religions; however, most non-Muslims were foreigners who attended private schools. Jewish citizens also had private schools where Hebrew and Judaism were taught.

During the year the government continued its efforts to prevent the politicization of mosques and schools and to curb religious extremism. This included the monitoring of mosques for sermons that incited violence or other political statements considered harmful to public security. During the year, an additional 1,500 government-ordered closures brought the total to more than 4,500 unlicensed religious schools closed because they were deemed to have deviated from formal educational requirements or to have promoted militant ideology. During the year the Ministry of Endowments and Religious Guidance reportedly opened government-approved schools in the same areas as the schools that had been closed. Private and national schools were prohibited from teaching courses outside the officially approved curriculum.

The government also deported foreign students found studying in unlicensed religious schools. In 2006 the Ministry of Endowments and Religious Guidance trained 500 male and female religious instructors on moderate Islam and religious tolerance. There were credible reports that authorities banned publishing of some materials that promoted Zaydi-Shiite Islam.

Societal Abuses and Discrimination

Unlike in the previous year, there were isolated incidents of anti-Semitism. In January the historic Saada community of 45 Jews was relocated to Sana'a after being threatened by a follower of the al-Houthis. Since fleeing their homes, the community has been under government protection in Sana'a. During the year, some members of the Reyda Jewish community reported acts of intimidation and abuse from some of their Muslim neighbors.

Jewish citizens, which number less than 500 in the country, are prevented from certain occupations by social pressures and are not eligible to serve in the military or federal government. In 2005, after the ruling party tried to put forward a Jewish parliamentary candidate, the General Election Committee adopted a policy barring all non-Muslims from running for parliament.

Following the January commencement of the third phase of fighting between the al-Houthi rebels and the government, some Zaydis reported harassment and discrimination by the government. Authorities reportedly targeted and harassed Sayyid Zaydi families, who are believed to be descendants of the Prophet Mohammed. Local police seized the daughter of a prominent Sayyid Zaydi religious figure in front of her place of employment, detained her at a Sana'a prison, and released her later that day.

For a more detailed discussion, see the [2007 International Religious Freedom Report \(/2009-2017.state.gov/j/drl/rls/irf/2007/\)](https://2009-2017.state.gov/j/drl/rls/irf/2007/).

d. Freedom of Movement, Internally Displaced Persons, Protection of Refugees, and Stateless Persons

The law provides for these rights, and the government respected them with some restrictions. The government limited the movement of women, foreigners, and tourists. The two latter groups were required to obtain government permission before leaving the country. In practice the government did not obstruct domestic travel; however, the army and security forces maintained checkpoints on major roads.

In certain areas armed tribesmen occasionally either manned their own checkpoints or operated alongside military or security officials and subjected travelers to physical harassment, extortion, or theft.

Although not required by law, women customarily were asked by government officials if they had permission from a male relative before applying for a passport or leaving the country. One women's rights NGO asserted that a husband or male relative could bar a woman from leaving the country, and that this requirement was strictly enforced when women traveled

with children. During the year there were several reports of women who were turned away at the airport because they did not have the permission of or were unaccompanied by a male relative.

Immigrants and refugees traveling within the country often were required by security officials at government checkpoints to show that they possessed resident status or refugee identification cards.

The law prohibits forced exile, and there were no reports of forced exile during the year.

During the year the government continued to deport an unknown number of foreigners studying at Muslim religious schools and believed to be in the country illegally. The government claimed that these persons were suspected of inciting violence or engaging in criminal acts by promoting religious extremism. The government used existing laws requiring foreigners to register with the police or immigration authorities within a month of arrival.

Protection of Refugees

The law does not provide for the granting of refugee status or asylum in accordance with the UN 1951 Convention relating to the Status of Refugees and its 1967 protocol, and the government has not established a system for providing protection to refugees. In practice, the government generally provided protection against refoulement, the return of persons to a country where there is reason to believe they feared persecution. In December 2006, however, the government stopped its practice of allowing the UN High Commissioner for Refugees (UNHCR) to perform refugee status determinations for non-Somalis. A limited number of non-Somalis have since been deported. The government continued to grant prima facie refugee status to Somalis who arrived in the country after 1991.

The government also provided temporary protection to thousands of individuals from Iraq and the Darfur region of Sudan who may not qualify as refugees under the 1951 Convention and its 1967 protocol, although there were some reports of deportations. There were also reports that some Iraqis were blocked from reuniting with their families when denied readmission into the country.

Refugees were allowed to work and travel freely within the country, although they faced some difficulties. There were reports of refugees being refused employment or passage at checkpoints because they lacked legal documentation.

The government cooperated with the UNHCR in assisting refugees and asylum seekers. The government, in cooperation with UNHCR, established six reception centers in 2006 to register and provide greater legal protection to refugees. No updates were provided on the reported 2006 harassment and abuse by security forces at a Somali refugee camp. At times authorities arrested without charge and imprisoned an unknown number of undocumented refugees while their cases were pending with UNHCR. Refugees were generally released from prison upon the completion of UNHCR processing.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The law provides citizens with the right to change their government peacefully through periodic elections based on universal suffrage; however, there were limitations in practice. Decision making and effective power was held by the executive branch, particularly the president, who has held office since 1978. The president appoints the prime minister, who presides over a 35-member cabinet chosen by the president. The latest cabinet reshuffle occurred on April 10. In practice the president, in association with the ruling GPC party, dominated the government. The parliament, in which three parties were represented, was not an effective counterweight to the executive branch and can be dissolved by the president.

Elections and Political Parties

According to a report by an international NGO, the September 6 by-elections in Aden and Ibb were conducted in a generally peaceful and orderly manner with only a few violations. The voting and counting was generally considered to have been fair and efficient; however, there were some delays in opening and closing female sub-committees within voting centers. There

were also numerous instances of confusion regarding the voting procedures, especially amongst illiterate and elderly voters. The report stated that some candidates wrongly used public resources to fund their campaigns, and campaigning continued on election day and in some cases within the polling stations. Military personnel were also employed as members of the field commissions.

According to local and international observers, the September 2006 presidential and local council elections were considered open and competitive and a marked improvement over previous elections. For the first time opposition candidates contested the presidential elections and had equal coverage on government-owned broadcast and print media. There were problems, however, with voter registration, redistricting, ballot counting, isolated incidents of election-related violence, and use of state resources on behalf of the ruling party.

Ali Abdullah Saleh was elected to a seven-year term in this election, the country's second nationwide direct presidential race, securing 77 percent of the votes. Faisal bin Shamlan, candidate of the opposition coalition Joint Meeting Parties (JMP), gained 22 percent. The remaining three opposition and independent candidates had less than one percent each. According to the Supreme Commission on Elections and Referendum (SCER), approximately 65 percent of eligible voters participated in the elections. Approximately 42 percent of the voters were women. The constitution provides that the president is elected by popular vote from at least two candidates endorsed by parliament.

International NGOs and the EU Observer Mission characterized polling as an important and unprecedented step in the country's democratic development. In its final post-election report, the EU noted that the GPC had an unfair electoral advantage because significant state resources were put at the disposal of GPC candidates for use during their campaigns. Opposition parties, while regretting irregularities, also hailed the elections as the first genuinely competitive contest in the country's history. Unlike in previous years, international and local observers did not report significant difficulties in accessing voting centers or filing their reports.

An international NGO reported that the voter registration process conducted in April 2006 was marred by poorly trained administrative staff, registration of a large number of underage voters, and interference by security officials. Local NGOs also alleged that deceased citizens were registered as voters. The international NGO reported that the opposition coalition JMP refused to participate in the voter registration process due to allegations of bias on the part of the SCER, which conducted voter registration. The SCER therefore recruited staff members on short notice and was not able to provide them with meaningful training before voter registration began.

In June 2006 the JMP and the GPC agreed on several items of contention, including the formation of a joint committee to review voter lists with the SCER and decide which names needed to be removed due to technical errors. Although the SCER requested that the courts expunge more than 200,000 names identified as underage or duplicate voters, a searchable electronic copy of the registration list was never provided to opposition parties or local constituencies so that they could verify voter lists before the election. There were reports that the SCER mistakenly removed eligible voters from lists in several constituencies.

In addition, many constituencies were redistricted a month before the election in a manner that was not transparent to the public, international observers, or the opposition parties. Independent and opposition observers noted that redistricting resulted in the allocation of more local council representatives for constituencies that were viewed as progovernment.

Whereas ballot counting for the presidential election was reported to be generally fair and accurate, there were numerous reports that ballots for the local council elections went uncounted in some constituencies or were not secured after the count, rendering a recount or inspection of the ballots impossible.

Election-related violence during the 30-day campaign period and on election day was markedly lower than in previous elections. The SCER reported that seven people were killed in election-related violence. In August 2006 one election official (a member of the opposition) and two ruling party members killed each other in an election-related dispute in al-Jawf. On

election day two people were killed in clashes between government and opposition party supporters in Taiz governorate, and two in Amran governorate. The SCER reported that an election official died in Hajja governorate on election day, but at year's end there had been no developments in the case.

In August 2006 the campaign manager of independent candidate Ahmed al-Majidi was killed in Lahij, but the SCER did not count this as an election-related killing. At year's end no results of the government's investigation into this killing had been made public. There were no reports that government security agents killed anyone in election-related incidents.

The law mandates that political parties be viable national organizations that cannot restrict their membership to a particular region. The constitution prohibits the establishment of parties that are contrary to Islam, "oppose the goals of the country's revolution," or violate the country's international commitments.

The law stipulates that each party have at least 75 founders and 2,500 members. Parties based on regional, tribal, sectarian, class, professional, gender, or racial identities are not permitted. Candidates from any party may declare their candidacy for elections. The government provided financial support to most of the 23 political parties, including a small stipend to publish party newspapers.

The ruling GPC has been the dominant party since unification of the country and controls 238 of the 301 seats in parliament (elected in 2003). Islah is the only other significant party, and it controls 46 seats. At times tribalism distorted political participation and influenced the central government's composition. Observers noted that persons were often selected to run for office or given jobs in particular ministries based on their tribal affiliations. Because tribal areas were still run by patriarchal systems, some tribal leaders reportedly influenced tribal members to vote for certain candidates.

Although there were no formal restrictions limiting opposition participation, the government made it difficult for some parties to organize. At year's end the government continued to hold substantial assets of the opposition Yemeni Socialist Party, including land and buildings, which were seized after the 1994 civil war. In 2005 the president publicly accused two minor parties of attempting to overthrow the government by fomenting the al-Houthi uprising. The headquarters of the Union for Popular Forces was seized by armed men and the party forcibly recreated under dubious circumstances.

On March 20, the government dissolved the al-Haq Party for reportedly violating the Political Parties Law. However, civil society observers claim that the party was abolished due to its affiliation with the al-Houthi rebels and for its Zaydi appeal.

Women voted and held office; however, cultural norms rooted in tribal traditions and religious interpretation often limited their exercise of these rights. There was one woman in the 301-seat parliament. There were three women in the cabinet, including the minister of human rights, the minister of social affairs and labor, and a supreme court justice. In 2005 the SCER established a Women's Department responsible for addressing gender equality in the electoral process. The department conducted informational campaigns on the importance and mechanism of voting prior to the September elections. In the September 2006 elections, 164 women ran for and 38 won seats on local and provincial councils. Women's rights activists and female parliamentary candidates accused the ruling party and the authorities of rigging the elections against women.

Many members of the Akhdam community, a small ethnic minority descended from east Africans, did not participate in the political process due to socioeconomic factors and discrimination. There were no members of minority groups in parliament or the cabinet. There were no reports that persons with disabilities were prohibited from participating in the political process.

Government Corruption and Transparency

The law provides criminal penalties for official corruption; however, the government did not implement the law effectively, and officials frequently engaged in corrupt practices with impunity. The World Bank's Worldwide Governance Indicators reflected that there is a serious corruption problem, and a perception of corruption in every branch and level of government was widespread. Government officials and parliamentarians were presumed to benefit from insider arrangements and embezzlement. Procurement was a regular source of corruption in the executive branch. In March 2006 the Central

Organization for Control and Audit (COCA), the country's investigative body for corruption, reported that between its creation in 1999 and 2005, COCA had investigated 518 official cases of corruption, of which 361 were filed with COCA in 2005, resulting in a loss to the treasury of \$24.7 million (4.86 billion riyals). At year's end, of the 518 cases, 490 had been sent to the judiciary for action, while the remaining 28 cases were still under consideration. COCA's reports were rendered to the parliament but were not accessible to the general public. Only low-ranking officials have been prosecuted for corruption since COCA's inception. The actual number of corruption cases was generally considered to be significantly higher than what was reported by COCA.

Petty corruption was widely reported in nearly every government office. Job candidates were often expected to purchase their positions. Tax inspectors were reported to undervalue their assessments and pocket the difference. Many government officials received salaries for jobs they did not perform or multiple salaries for the same job.

In December 2006 the President ratified an anticorruption law, creating the first Supreme National Authority for Combating Corruption (SNACC), a new independent authority to investigate cases of official corruption. The authority includes a council of government, civil society, and private sector representatives.

On June 25, parliament elected eleven members to the SNACC, whose chair and deputy chair will serve a two-and-a-half year term and can serve another two-and-a-half year term, subject to SNACC consent, while regular SNACC members can serve only one five-year term. On July 4, President Saleh signed a decree officially establishing SNACC and chaired SNACC's first meeting. SNACC elected former Minister of Telecommunications Ahmed al-Anesi as Chair and Sana'a University Associate Professor of Political Science Bilquis al-Osbo'a as Deputy Chair.

In early June, the local authority fired the Director General of Taxes Hussein Ali al-Ameer, Director General of Public Health and Population Fadhl Mohammed al-Akwa'a, and Director General of Electricity Ahmad Sailan on charges of corruption in the Dhammar province.

The law requires a degree of transparency and public access to information, and the Press and Publications Law provides for journalists to have some access to government reports and information; however, in practice the government offered few procedures to ensure transparency. In August 2006 parliament passed a law requiring public disclosure of government officials' assets, and the SNACC worked to implement this during the year. The government provided limited information on Internet sites; however, few citizens had access to the Internet.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

Domestic and international human rights groups operated with varying degrees of government restriction, generally investigating and publishing their findings on human rights cases with little constraint. NGOs reported that government officials were not always cooperative and responsive to their views. The Law for Associations and Foundations regulates the formation and activities of NGOs.

The law permits some foreign funding of NGOs and requires government observation of NGO internal elections. During the year the MHR sponsored several initiatives to further cooperation with local NGOs.

Domestic human rights NGOs operated throughout the year. Although progovernment NGOs were supported by the government or ruling party, others were clearly supported by opposition parties or were fully independent. Some of the most active included the Human Rights Information and Training Center, HOOD, the Arab Foundation for Supporting Women and Juveniles, the Democracy School, Media Women Forum, and the Arab Sisters Forum for Human Rights.

Some NGOs practiced self-censorship. Some ministries reportedly harassed NGOs critical of the government by delaying the procedures required for annual registration and licensing and through bureaucratic funding criteria. For example, MSAL refused to reissue the license for the Arab Sisters Forum for Human Rights due to its criticism of the government surrounding

press freedom. The government requires NGOs to register annually or be declared illegal. However, NGOs that were not granted licenses continued to operate during the year. In some instances the government reportedly registered a progovernment clone version of an NGO, recognizing the clone as the legitimate NGO, thereby preventing the original NGO from renewing its registration under its original name. In such cases registration applications must be re-filed under a new name. In some instances during the year, the government reportedly did not act upon some registration applications and reportedly placed unofficial freezes on new licenses ahead of the September elections.

The government monitored NGO finances. The government reportedly used financial reviews as a pretext to harass or close NGOs, and some NGOs allegedly kept less than transparent records. Several NGOs reported being singled out as "agents of foreign powers" in progovernment media after publishing reports critical of the government. During the year, Women Journalists without Chains, HOOD, Arab Sisters Forum, and the Observatory for Human Rights were all named as "foreign agents" in progovernment media.

The government provided AI, Human Rights Watch, the Parliament of the EU, and the CPJ limited access to records, detention centers, and prisons. The ICRC maintained a resident office to inspect prisons during the year, although access to PSO prisons was sometimes restricted. ICRC also carried out humanitarian missions around Saada to support the displaced populations during the war. ICRC continued to run IDP camps for Saada's displaced population.

The MHR attempted to raise awareness of human rights via public information campaigns, training of security forces, and participation in numerous conferences in cooperation with civil society.

During the year, the parliament's committee on human rights was largely inactive, as was the consultative council's committee on human rights.

Section 5 Discrimination, Societal Abuses, and Trafficking in Persons

The law provides for equal rights and equal opportunity for all citizens; however, the government did not effectively enforce the law. Discrimination based on race, gender, and disability remained serious problems. Entrenched cultural attitudes limited women's ability to access equal rights.

Women

The law criminalizes rape; however, the government did not effectively enforce the law. The punishment for rape is imprisonment for up to 15 years; however, this had not been imposed in any rape case by year's end. The rape victim was often prosecuted on charges of fornication after the perpetrator was set free. According to the law, the accused must confess or the defense needs to provide four female or two male witnesses to the crime. The government has yet to introduce DNA technology to its criminal rape cases, and without witnesses cases were difficult to prosecute. Rape cases were also often hindered by excessive corruption. A leading local women's rights organization asserted that the judicial system fails to bring justice to victims of rape. According to the law, a woman may not refuse sexual relations with her husband; accordingly, spousal rape is not criminalized. There are no reliable statistics on the number of rapes. Most women do not come forward, often remaining silent in fear of shaming the family and violent retaliation.

The 2003 rape case of Anisa al-Shuaibi was ongoing at year's end. Al-Shuaibi was detained in November 2003 with her two children by the CID for the kidnapping and murder of her husband, who was later found to be living. According to her lawyers, al-Shuaibi was detained illegally for 38 days in a CID jail, during which she was raped and tortured by two high-level CID officers. Al-Shuaibi continued to receive threats on her life and those of her children at year's end.

The law provides women with protection against violence; however, the law was rarely enforced. Spousal abuse occurred; however, it generally was undocumented. Violence against women and children was considered a family affair and usually went unreported to the police. Due to social norms and customs, an abused woman was expected to take her complaint to a

male relative (rather than to the authorities) to intercede on her behalf or provide her sanctuary. For example, on December 3, the *Yemen Times* published an editorial entitled, "There Must be Violence Against Women," in which the author argued that women should not contact the authorities if beaten by a male relative.

A small shelter for battered women in Aden assisted victims, and telephone hotlines operated with moderate success in Aden and Sana'a. The MHR announced on April 10 its launching of a nationwide hotline to receive complaints on abuses of human rights; it was unclear how many domestic violence cases the MHR hotline received.

The press, women's rights activists, and the MHR continued to investigate and report on violations of women's rights. During the year NGOs sponsored several women's rights conferences dealing with issues such as violence against women, increasing the political representation of women, and economic empowerment.

The penal code allows leniency for persons guilty of committing a "crime against honor," a violent assault or killing committed against females for perceived immodest or defiant behavior. However, the law does not address other types of honor crimes, including beatings, forced isolation, imprisonment, forced early marriage, and deprivation from education. Legal provisions regarding violence against women state that a convicted man should be put to death for killing a woman. However, a husband who kills his wife and her lover may be fined or imprisoned for one year or less.

Prostitution is illegal; however, it was a problem, particularly in Aden and Sana'a. The punishment for prostitution is imprisonment for up to three years or a fine. The MOI and PSO tolerated and unofficially facilitated prostitution and sex tourism through corruption for financial and operational gain. No laws addressed sex tourism; however, it was a problem, particularly in Aden and Sana'a.

There are no laws prohibiting sexual harassment, which occurred both in the workplace and in the streets.

Social custom and local interpretation of Shari'a discriminated against women. Men were permitted to take as many as four wives. By law the minimum age of marriage is 15 years; however, the law was not widely enforced, and some girls married as early as age 10.

Husbands may divorce wives without justifying their action in court. A woman has the legal right to divorce; however, she must provide a justification, and there are a number of negative practical, social, and financial considerations.

Women who seek to travel abroad must customarily obtain permission from their husbands or fathers to receive a passport and to travel. Male relatives were expected to accompany women when traveling internationally; however, enforcement of this requirement was not consistent. Some women reported that they traveled freely without male escorts.

Some interpretations of Shari'a prohibit Muslim women from marrying a non-Muslim man; however, a Muslim man is allowed to marry a non-Muslim woman. Women do not have the right to confer citizenship on their foreign-born spouses; however, they may confer citizenship on children born of foreign-born fathers if the father dies or abandons the child. The foreign wife of a male citizen must remain in the country for two years to obtain a residence permit.

According to a MOI regulation, any citizen who wishes to marry a foreigner must obtain the permission of the ministry. A woman wishing to marry a foreigner must present proof of her parents' approval to the MOI. A foreign woman who wishes to marry a male citizen must prove to the ministry that she is "of good conduct and behavior" and "is free from contagious disease."

According to data from the 2004 Central Statistics Organization census, approximately 69 percent of women were illiterate, compared with approximately 27 percent of men, although statistics in Yemen are extremely unreliable. The high illiteracy rate had a significant effect on women's participation in the September 2006 elections, limiting access to information on

campaigns and political rights. Election observers also noted that illiteracy helped perpetuate the belief that women were incapable of holding public office. The fertility rate was 6.67 children per woman. Most women had little access to basic health care.

In general women in the South, particularly in Aden, were better educated and had somewhat greater employment opportunities than their northern counterparts. However, since the 1994 war of secession, the number of women in government in the south has declined, due to cultural pressure from the north, as well as due to stagnation of the economy. According to the UN Development Program, female workers accounted for 23 percent of the paid labor force in 2003.

The law stipulates that women are equal to men in employment rights; however, female activists and NGOs reported that discrimination was a common practice in the public and private sectors. Mechanisms to enforce equal protection were weak or nonexistent.

According to the MLSA there were more than 170 NGOs working for women's advancement. The Arab Sister's Forum for Human Rights worked with other NGOs, the government, and donor countries to strengthen women's political participation. The Yemeni Women's Union and Women's National Committee conducted workshops on women's rights.

Children

The government lacked the political will and necessary resources to ensure adequate education, health care, and welfare services for children. The law provides for universal, compulsory, and free education from age 6 to 15 years; however, compulsory attendance was not enforced and books and school uniforms raised the cost of attendance to about \$10 (2,000 riyals) per student per year. Public schooling was available to children through the secondary school level. Attendance was mandatory through the ninth grade; however, many children, especially girls, did not attend primary school. According to 2006 government statistics, average student attendance in primary schools was 81.65 percent for boys and 61.74 percent for girls. The 2007 Community, Habitat and Finance (CHF) ACCESS-MENA report stated that 55 percent of children between the ages of 6 to 15 did not attend school.

The law provides for free medical care for children with citizenship; however, this was not always enforced. Malnutrition was common. According to 2005 UN Children's Fund (UNICEF) statistics, the infant mortality rate was 76 deaths per 1,000 births. Male children received preferential treatment and had better health and survival rates.

On June 12, hundreds of children reportedly marched in front of government buildings in Sana'a demanding more financial aid in order to solve their health, education, nutrition, child labor, and trafficking problems. The march, which was organized by local NGO Democracy School and was attended by children's rights activists, submitted a letter to the Prime Minister requesting that the government fulfills its promises of offering free education and health services to children.

The law prohibits female genital mutilation (FGM); however, it was a pervasive practice in the coastal areas on infants before they reach forty days of age. Although government health workers and officials discouraged the practice, women's groups reported that FGM reached as high as 90 percent in some coastal areas, such as Mahara and Hodeida. The Woman's National Committee and the Ministry of Endowments and Religious Guidance provided a manual for religious leaders on women's health issues, including the negative health consequences of FGM.

Child marriage was a significant problem in the country. The law requires that a girl be 15 years of age to marry; however, it was not enforced, and marriages of girls as young as age 10 occurred. In 2005 UNICEF estimated that approximately 37 percent of citizen children under the age of 15 were married. According to the ministry of social affairs and labor, the government did not promote public awareness campaigns on the negative effects of child marriage due to the cultural sensitivity of the issue.

The law does not define or prohibit child abuse, and there was no reliable data on the extent of child abuse.

Child labor was a problem. The Child Rights Law prohibits child labor; however, the law has not been implemented, and children as young as four years of age worked in workshops, agriculture, fishing or as street vendors.

Trafficking in Persons

The law does not explicitly address or prohibit trafficking in persons, but other sections of the country's criminal code can be applied to prosecute trafficking offenses. There were credible reports of trafficking in children for forced begging, unskilled labor, and street vending, and unsubstantiated reports of trafficking in women and children for commercial sexual exploitation. The law, which does not differentiate between children or adult victims, allows for a prison sentence of up to 10 years for anyone convicted of crimes constituting trafficking in persons. Other laws forbid and severely punish kidnapping and sexual assault. The Child Rights law mandates the protection of children from economic and sexual exploitation.

There were no reports of underage internal sex trafficking during the year. However, according to a local human rights NGO, it was possible that Yemeni women, including those under the age of legal consent, were trafficked from their homes to other regions within the country for the purposes of prostitution. For example, there were reports that two underage girls, one in 2005 and one in 2006, were trafficked into prostitution in Aden after fleeing abusive homes or forced marriages in the northern governorates. The same NGO also believed that such prostitution may have been organized and speculated that low-level government and security officials operated or were complicit in sex trafficking within the country. Notably, the government reportedly detained and prosecuted victims of trafficking under anti-prostitution laws.

There were no official statistics available on the number of children trafficked out of the country. Press and NGO reports claimed that children mostly from northern governorates were trafficked out of the country to work as street beggars, vendors, or domestic help in Saudi Arabia at a rate of approximately 200 children per week. The MSAL's Child Labor Unit (CLU) acknowledged during the year that high rates of children are trafficked into Saudi Arabia for work. The CLU estimated that at least 10 children per day are trafficked into Saudi Arabia. MSAL had no reports during the year indicating that children were trafficked into Saudi Arabia for commercial sex work. However, experts at international and intergovernmental organizations reported that there was evidence in the three governorates of Mahweet, Aden, and Taiz that indicated that young girls below the age of 15 were trafficked into the commercial sex trade in those areas. They worked predominantly in hotels, casinos, and nightclubs. Children were trafficked by individuals, older children, and loosely organized syndicates who helped them cross the border by donkey, automobile, or foot.

Government investigations revealed that extreme poverty was the primary motivation behind child trafficking, and the victims' families were almost always complicit. The traffickers were often well known by, if not related to, the family; parents were either paid or promised money in exchange for allowing their children to be trafficked. Many cases were also later discovered to be instances of illegal immigration.

The government continued its discussions with Saudi Arabian officials to discuss combating child trafficking. The MHR ran a hotline for persons to report child trafficking.

In an attempt to prevent child trafficking, the MSAL conducted a campaign in regions known as points of origin of trafficked children. The MSAL warned potential victims' parents against the dangers of allowing their children to work in Saudi Arabia.

Persons with Disabilities

Several laws mandate the rights and care of persons with disabilities; however, there was discrimination against them. Five percent of government jobs should be reserved for persons with disabilities, and a law mandates the acceptance of persons with disabilities in universities, exempts them from paying tuition, and requires that schools be made more accessible to persons with disabilities. It was unclear to what extent these laws have been implemented. No national law mandates the accessibility of buildings for persons with disabilities.

The government's Social Fund for Development and Fund for the Care and Rehabilitation of the Disabled, administered by the MSAL, provided limited basic services and funded over 60 NGOs to assist persons with disabilities.

National/Racial/Ethnic Minorities

The Akhdam (an estimated 2 to 5 percent of the population) were considered the lowest social class. They lived in poverty and endured persistent social discrimination. The government's Social Fund for Development provided basic services to assist the group.

During the year tribal violence continued to be a problem in Sana'a and throughout Yemen, and the government's ability to control tribal elements responsible for acts of violence remained limited. Tensions over land or sovereignty in particular regions, which periodically escalated into violent confrontations, continued between the government and a few tribes. During the year human rights groups reported that some immigrants of African origin had difficulty in securing MOI permission to marry citizens.

There were no reports of discrimination based on sexual orientation or HIV/AIDS; however, these topics are socially sensitive and not discussed publicly.

Incitement to Acts of Discrimination

Two inflammatory government newspapers, *al-Dostor* and *Akhbar al-Youm*, continuously published propaganda material for the purpose of slander and incitement to discrimination or violence. On July 23, *al-Dostor* published an article with the names of Yemen's top 40 female activists, branding them as apostates. The newspaper also printed photos of four of the activists.

Section 6 Worker Rights

a. The Right of Association

The law provides that citizens have the right to form and join unions; however, this right was restricted in practice.

The law permits trade unions to organize. Although not required by law, all current unions are federated within the General Federation of Trade Unions of Yemen (GFTUY), a national umbrella organization. The GFTUY claimed approximately 42,000 members in 21 unions during their June elections. The GFTUY denied any association with the government; however, it worked closely with the government to resolve labor disputes through negotiation.

The politicization of unions and professional associations continued to hamper the right of association. In some instances the GPC ruling party attempted to control professional associations by influencing internal elections or placing its own personnel, usually tied to the government, in positions of influence in unions and professional associations.

The law dictates that labor unions can be dissolved only by court order or its own members; however, the government did not respect this right in practice. In September the MSAL threatened to dissolve the Yemen Teachers Union, Technical Education Syndicate, and the Physicians and Pharmacists Syndicate, claiming they had not obtained a MSAL-issued license and were thus operating illegally. This announcement from MSAL came after months of sit-ins and demonstrations staged around Yemen by the Teachers Union to demand a pay increase.

The law generally protects employees from anti-union discrimination. Employers do not have the right to dismiss an employee for union activities. There were reports that private sector employers discriminated against union members through transfers, demotions, and dismissals.

Employees may appeal any dispute, including cases of anti-union discrimination, to the MSAL. Employees also may take a case to the Labor Arbitration Committee, which is chaired by the MSAL; it is composed of an employer representative and a GFTUY representative. Such cases often were disposed favorably toward workers, especially if the employer was a foreign company. Neither GFTUY nor the MSAL were able to provide statistics on how many unionized employees used this system during the year.

b. The Right to Organize and Bargain Collectively

The labor law provides workers, except public servants, foreign workers, day laborers, and domestic servants the right to organize and bargain collectively without government interference. The government permitted these activities; however, at times it sought to influence them by placing its own personnel inside groups and organizations. Unions may negotiate wage settlements for their members, and may resort to strikes or other actions to achieve their demands. Public sector employees must take their grievances to court. The MSAL has veto power over collective bargaining agreements. Several such agreements existed. Agreements may be invalidated if they are "likely to cause a breach of security or to damage the economic interests of the country."

The labor law provides unions the right to strike only if prior attempts at negotiation and arbitration fail, and workers exercised this right by conducting legal strikes. The proposal to strike must be submitted to at least 60 percent of all concerned workers, of whom 25 percent must vote in favor. Strikes for explicit "political purposes" were prohibited. During the year there were reports of at least 40 peaceful strikes.

Throughout the year the Yemen Teachers Union staged a number of demonstrations, strikes, and sit-ins demanding that the government adhere to the 2005 Salaries and Wages Strategy Law, which grants them higher salaries and allowances. On May 6 and May 18, the Teachers Union staged strikes in Lahj. On August 7, the Union staged a sit-in and a march in Lahj including thousands of teachers. On September 4, the Union organized massive sit-ins in Amran and Sana'a. No penal action was taken against the participants of these demonstrations; however, some teachers were threatened with salary deductions and transfers to remote schools by the ministry of education. At year's end, the ministry had not taken any action against the teachers.

MSAL, aware of the problems encountered by the Teachers Union, reportedly submitted a request to the Attorney General requesting the dissolution of the Teachers Union due to its unregistered status. According to the MSAL, the ministry's role is to monitor and give advice to unions.

The Land Aviation Engineers Syndicate organized a strike between May 19 and 21, suspending it after Yemenia Airlines met its claim to implement a new wage strategy and to rehire three employees that had previously been fired without due process. Yemenia Airlines had not implemented the two demands at year's end.

Throughout the year the Yemeni Physicians and Pharmacists Syndicate was largely inactive, despite the government's failure to fulfill its 2006 pledge to raise wages.

There are no export processing zones.

c. Prohibition of Forced or Compulsory Labor

The law prohibits forced or compulsory labor, including by children, and there were no reports that such practices occurred.

d. Prohibition of Child Labor and Minimum Age for Employment

The Child Rights Law prohibits child labor; however, it has not been effectively implemented.

The established minimum age for employment was 15 years in the private sector and 18 years in the public sector. By special permit, children between the ages of 12 and 15 years could work. The government rarely enforced these provisions, especially in rural and remote areas. The government also did not enforce laws requiring nine years of compulsory education for children.

Child labor was common, especially in rural areas. The 2007 CHF ACCESS-MENA report states that children in the country were predominantly employed in agriculture and fishing. Many children were required to work in subsistence farming due to family poverty. Even in urban areas, children worked in stores and workshops, sold goods, and begged on the streets. Many children of school age worked instead of attending school, particularly in areas in which schools were not easily accessible.

The Child Labor Unit at the Ministry of Social Affairs and Labor was responsible for implementing and enforcing child labor laws and regulations; however, the unit's lack of resources hampered enforcement.

In 2006 the Ministry of Social Affairs and Labor estimated that there were over 500,000 working children, ages 6 to 14 years, and that working children equaled 10 to 15 percent of the total work force. CHF 2007 estimated that approximately 52 percent of male children between the ages of 10 to 14 were in the work force, compared to 48 percent of female children in the same age group. CHF estimated that 83 percent of working children worked for their families (including street beggars) and 17 percent worked outside the family. The MSAL cites that children working outside the family are employed in small factories and shops. The government was an active partner with the International Labor Organization's International Program to Eliminate Child Labor. During the year this program offered remedial education, vocational training, counseling, and reintegration of child laborers into schools.

e. Acceptable Conditions of Work

There was no established minimum wage. The labor law provides equal wages for workers and civil servants. Private sector workers, especially skilled technicians, earned a far higher wage. The average daily wage did not provide a decent standard of living for a worker and family. During the year the minimum civil service wage did not meet the country's poverty level.

The law specifies a maximum 48-hour workweek with a maximum 8-hour workday; however, many workshops and stores operated 10- to 12-hour shifts without penalty. The 35-hour workweek for government employees was 7 hours per day from Saturday through Wednesday.

MSAL is responsible for regulating workplace health and safety conditions. The requisite legislation for regulating occupational health is contained in the labor law. However, enforcement was weak to nonexistent due to the need for capacity building in the MSAL. MSAL has a Vocational Safety Department that relies on committees to conduct primary and periodic investigations of safety and health conditions in workplaces. Many workers were regularly exposed to toxic industrial products and developed respiratory illnesses. Some foreign-owned companies and major manufacturers implemented higher health, safety, and environmental standards than the government required. Workers have the right to remove themselves from dangerous work situations and may challenge dismissals in court.

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